

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Song v. Hong
BEFORE: Justice Moore
COUNSEL: John A. McLeish and Meighan Ferris-Miles, for the Plaintiffs
Barry A. Percival, Q.C., for the Defendants

DATE HEARD: 25, 26 February 2008

Ruling

[1] At issue on this application is whether the defendants may lead evidence from an expert whose opinion is contained within a report that was not served within the time required by the *Rules of Civil Procedure*.

Background

[2] This case arises from a motor vehicle accident that occurred on 26 July 2002 on Highway 401 near the city of Cornwall in the province of Ontario.

[3] The plaintiff, Ju Song, was a passenger in a vehicle that rolled over in that accident; she sustained a variety of injuries, the most significant of which involved an injury to her spinal cord which has left her a paraplegic.

[4] There is no doubt, indeed it is conceded that Ju Song sustained serious and permanent personal injuries in the motor vehicle accident that has given rise to this case and to this trial. Her injuries have produced a variety of limitations in her daily activities.

[5] The parties have retained experts to address various issues that will be considered by the jury. For present purposes, the expertise of 2 opposing expert witnesses, Ms. Barbara Baptiste

and Ms. Karen Rucas, is in the area of occupational therapy and of future care, supervision and assistance with daily needs and housing needs and associated expenses.

[6] These two experts have prepared and delivered reports over the years preceding this trial, reports in which they have set out their personal opinions informed by facts that they have taken from the plaintiffs, from medical and other caregivers and from other sources. As well, one expert, Karen Rucas, has considered and critiqued the opinions, assumptions that they are built upon and the costing of care, services and renovations addressed in the opposing reports, those being reports written by Barbara Baptiste..

[7] The trial of this action began before a jury on Thursday 21 February 2008. Over the following weekend and before the evidence in chief given by Ju Song, the first witness at trial, had been completed, the defendants served a supplementary report authored by Ms. Rucas who purported to critique the evidence given by Ju Song at trial and views contained in two reports authored by Ms. Baptiste

[8] Counsel explains that the report in question was commissioned several weeks ago. Ms. Rucas had been out of the country. In any event, as soon as the report became available to defense counsel, it was served immediately upon counsel for the plaintiffs.

The rules

[9] Rule 53.03 provides timelines for the delivery of reports of experts that a party intends to call to give opinion evidence at trial. For purposes of this application, it is accepted that service of the supplementary report in question has not been made within the applicable timelines. As such, technical compliance with the provisions of Rule 53.03 has not been achieved.

[10] Rule 53.03(4) provides for the extension or abridgment of time for service of a report or supplementary report.

[11] Rule 53.08 speaks to the admission of evidence at trial including evidence referred to in the report of an expert witness that has not been served within the appropriate timelines. The rule states that if evidence is admissible only with leave of the trial judge, leave shall be granted on such terms as are just and with an adjournment if necessary, unless to do so will cause prejudice to the opposite party or will cause undue delay in the conduct of the trial.

[12] In his recent text, *Ontario Courtroom Procedure*, 2007 LexisNexis, Ferguson J. addresses notice requirements when calling expert witnesses in civil trials at pages 936 and 937 as follows:

“In a civil trial a party intending to call an expert witness must serve all other parties with an expert's report that includes the expert's qualifications and the substance of the experts evidence: *Rules of Civil Procedure* (R.R.O. 1990, Reg. 194) (“Civil Rules”), Rule 50.03.

If a party fails to comply with civil rule 53.03 the evidence of that parties expert witness will not be permitted unless leave as granted by the trial judge. However, leave is rarely denied because civil rule 53.08 mandates that leave shall be granted on such terms as are just and with an adjournment were necessary, unless it will cause prejudice to the opposing party or undue delay and the conduct of the trial. The rule is mandatory. Leave *must* be granted unless doing so would create prejudice that cannot be overcome by an adjournment or by an award of costs: *Sevidal v. Chopra*, [1987] O.J. No. 732, 64 O.R. (2nd) 169 (H.C.J.); *Hunter v. Ellenberger*, [1988] O.J. No. 49 (H.C.J.).”

[13] During his submissions on Monday, 25 February 2008, it appeared that Mr. McLeish took issue with the late delivery of the 23 February 2008 report of Karen Rucas but on hearing further from him on this application on 26 February 2008, it is clear now that that is not his clients' concern with relation to the latest Rukas report and/or her expert opinion evidence to be offered in this trial.

[14] The plaintiffs are content that leave be granted (no terms were sought) to hear Ms. Rucas on the evidence contained within the subject report if, but only if, that evidence is otherwise properly received in this trial.

The Plaintiffs' Position

[15] For purposes of this application, the court considered the following documents:

- 22 November, 2004 Future Care Cost Analysis, in Home Occupational Therapy Functional Assessment Report of Karen Rucas & Associates addressed to Allianz Insurance;
- 27 June, 2005 Occupational Therapy Progress Report Number One of Karen Rucas and Associates to Allianz.
- Medical Rehabilitation chart of expenses containing reference to K. Rucas & Associates beside Case Management Dec 9/04 – May 4/05 and associated charges of \$14,001.19;
- 22 July, 2005 Occupational Therapy Report Number Two from Karen Rucas & Associates to Allianz;
- 7 February, 2006 Attendant Care Assessment Report of Karen Rucas & Associates to John McLeish;
- 3 April, 2006 report of Karen Rucas & Associates addressed to John McLeish;
- 21 December, 2007 letter from B.A. Percival to Karen Rucas & Associates;
- 23 February, 2008 report from Karen Rucas & Associates to Barry Percival;
- 25 February, 2008 letter from B.A. Percival to John McLeish; and
- 26 February, 2008 email from Bong Keun Jung to Mr. McLeish's associate, Meighan Ferris-Miles.

[16] The plaintiffs submit, and the defendants concede, that Karen Rucas and Associates was originally retained by Allianz Insurance Company to provide a future care cost analysis and to perform an occupational therapy assessment upon Ju Song in connection with statutory accident benefits claims involving the plaintiffs and Allianz during the fall of 2004 and thereafter.

[17] Under the date 22 November 2004 a report and attachments of over 60 pages in length detailed the Ju Song's needs and costs for accident benefits purposes.

[18] The plaintiffs concede that Ms. Rucas, the principal author of that report, is a compellable witness at this trial and may give relevant, admissible evidence upon the matters addressed in that report. Indeed, the plaintiffs are content that Ms. Rucas be heard, if called, to address the findings and opinions in all or any of her reports with the exception of the most recent report, that dated 23 February 2008.

[19] In 2005, Mr. McLeish assumed carriage of the plaintiffs' claims and began the process of marshaling the medical and other expert evidence that might be required. In that regard, he sought and received reports from Karen Rucas and Associates including a progress report dated 27 June 2005 and an Attendant Care Assessment Report dated 7 February 2006.

[20] Acting as counsel for the plaintiffs, it is submitted that Mr. McLeish dealt with Karen Rucas and Associates with the knowledge and consent of Ju Song. This is not contested. There is no suggestion that Ms. Rucas or her company obtained the consent of Ms. Song, however, to provide reports to the defendants now before this court; the defendants do not include Allianz Insurance Company, the plaintiff having settled her outstanding claims against that insurer in January 2006 (as confirmed by Settlement Disclosure document, trial exhibit 14).

[21] The plaintiffs submit that Ms. Rucas obtained a written consent from Ju Song to act in a treating capacity as an occupational therapist on 26 March 2005. This fact is confirmed in the 27 June 2005 Progress Report Number One and by the Medical Rehabilitation Chart confirming payment of case management services in the amount of \$14,001.19.

[22] In her report of 3 April 2006, at the request of Mr. McLeish, Ms. Rucas reviewed and critiqued a defence medical report authored by Dr. Oshidari in relation to the attendant care benefit (then at issue with Allianz). In that report, Ms. Rucas confirmed that she visited Seoul Korea in 2004 and had another opportunity to assess Ms. Song on 31 January 2006 in Canada.

[23] The email of 26 February 2008 confirms that Mr. Jung is an occupational therapist "hired by Karen Rucas to provide rehabilitative care and support to Eugene song." He adds that he "was supervised by Karen Rucas" and he understood "that Karen Rucas was coordinating Eugene Song's occupational therapy and rehabilitative support work." Ms. Rucas confirmed this view when she stated (in her 23 February 2008 report to Mr. Percival) that:

"following my departure from Korea in mid-November 2004, Ju's therapy program was managed by two registered occupational therapists whom I monitored"

[24] The plaintiffs submit that Ms. Rucas was originally retained by Allianz to provide occupational therapy opinions relevant to accident benefits claims between the insurer and Ju Song but soon thereafter she obtained a written consent to act in a treating capacity and indeed did assess and treat and/or supervise occupational therapy and rehabilitative support work.

[25] As such, Ms. Rucas became a treating health care professional and placed herself into a position that should prevent her from reporting to any person about this plaintiff's treatment, condition or future care needs and costs, unless or until she is given Ju Song's consent.

[26] By letter dated 21 December 2007, Mr. Percival forwarded to Ms. Rucas certain reports prepared by Ms. Barbara Baptiste of RMI, reports dated 12 December 2005 and 10 January 2006. Although Mr. Percival's letter does not reference Ms. Baptiste's most recent report (and predates it), it appears that Ms. Rucas was also provided an updated future care cost report by Barbara Baptiste, a report the court is advised was "brief in the extreme" and dated 17 January 08.

[27] For purposes of this application and to the extent that the 23 February 2008 report of Ms. Rucas critiques the views of Barbara Baptiste, the plaintiffs submit that Ms. Rucas cannot be heard.

[28] The plaintiffs also submit that, although Ms. Rucas is a compellable witness at the behest of the defendants, she cannot discuss Ju Song's occupational therapy status or needs with the defendants before she attends and takes the witness stand at trial.

The Defendants' Position

[29] The defendants assert that this is a unique situation and it arises from the fact that his clients originally retained Karen Rucas & Associates but the defendants have not consented to the plaintiffs subsequently employing Ms. Rucas' occupational therapy services. "Changing hats" is the problem.

[30] The defendants take exception to the plaintiffs taking over a witness who was originally retained by the defendants. In any event, the defendants submit that Ms. Rucas has not imparted information to the defendants that she has gleaned from her relationship with Ju Song; rather, Ms. Rucas has simply received information from defence counsel and commented, in her 23 February 2008 report to Mr. Percival, upon that information.

[31] The defendants observe that the early reports (not the 23 February 2008 report) authored by Ms. Rucas have been provided by the plaintiffs to several of the medical and other experts expected to attend as witnesses at trial. As such, the views of Ms. Rucas are known by such experts and have informed their opinions.

[32] The position of the defendants has been argued without reference to any law supporting it.

Karen Rucas

[33] Karen Rucas describes herself (23 February 2008 report) as:

“a duly qualified occupational therapist and graduated from the University of Toronto in 1980. I am a member of the Canadian Association of occupational therapists (CAOT), the Ontario Society of occupational therapists (OSOT) and hold registration with the College of occupational therapists of Ontario (COTO). I have been working in the area of personal injury since 1990, doing specialized, medico-legal reports and in particular assessing for future care needs and costs for persons who have suffered a dramatic injury. I have a Lecturer appointment at the University of Toronto.”

[34] In her report of 22 November 2004 addressed to Allianz Insurance, Ms. Rucas references Claim Number AP4767796. She references that same claim number in all subsequent reports she wrote to Allianz and to Mr. McLeish, through to and including her report of 3 April 2006. She does not use that reference number when writing to Mr. Percival.

[35] It is clear from the reports dated in and before April 2006 that Ms. Rucas was focused upon establishing Ju Song’s entitlement to attendant care, housekeeping and home maintenance and other benefits available to Ms. Song as an insured person for purposes of the statutory accident benefits portion of an Allianz insurance policy.

[36] In her first report, Ms. Rucas wrote (page 2) that as part of her assessment and in order to establish entitlement to the referenced benefits, she undertook to perform:

- “Clinical interview
- Physical examination
- Attendant Care Assessment
- Housekeeping assessment

Other information was obtained from the client, her family and her providers to establish her long term needs”.

Analysis

[37] The *Occupational Therapy Act*, 1991 C. 33, as amended 2007, c.10, Sched. R, s. 17, defines the scope of practice as follows: “the practice of occupational therapy is the assessment of function and adaptive behavior and the treatment and prevention of disorders which affect function or adaptive behavior to develop, maintain, rehabilitate or augment function or adaptive behavior in the areas of self-care, productivity and leisure.

[38] By Ontario Regulation 95/07 under the *Occupational Therapy Act (supra)*, certain acts of professional misconduct are defined, including: "Giving information about a client to a person other than the client or the client's authorized representative except with the consent of the client or the authorized representative or as required or authorized by law".

[39] In *Burgess (Litigation Guardian of) v. Wu* (2003), 68 O.R. (3rd) 710 (S.C.J.), the court was asked to rule on the propriety of a former doctor of a deceased person acting as a defense witness in a medical malpractice action involving that doctor's care and treatment of the person during his lifetime.

[40] The court found that no consent had been sought or given on behalf of the patient to contact between defense counsel and the doctor in question nor any consent to the doctor acting as an expert for the defense.

[41] The court addressed the rules regarding confidentiality between doctor and patient and stated [at Para 53] that "these have been stated, he indeed trumpeted, on many occasions but the circumstances of this case suggest that they need to be repeated".

[42] Ferguson J. referred to and quoted from the Report of the Commission of Inquiry into the Confidentiality of Health Information [at Para 54],

"Confidentiality has been an essential element of the medical care relationship ever since the dawn of medicine. In the fourth century B.C., the famous Greek physician Hippocrates recognized this in his oath for new doctors. The Hippocratic Oath, which is still in use today, includes this clause:

Whatever, in connection with my professional practice, or not in connection with it, I see or hear, in the life of man, which ought not to be spoken abroad, I will not divulge, as reckoning that all such should be kept secret.

[43] Ferguson J. determined that a physician's duty of confidentiality arises from the ethics of the medical profession and from the common law and, further, that it is now a legislated duty.

[44] After quoting the applicable Regulation, one worded almost identically to the Regulation applicable in the instant case, he added [at Para 62]: "I have always understood that the protocol in the field of litigation was that counsel were not permitted to contact any physician to ask about matters relating to a patient of that position..... I believe the reasoning behind the protocol is that position so a duty of confidentiality to the patients and this prevents them from even disclosing that they treated the patient let alone from disclosing any information about the treatment. I believe the protocol is broader than the liberal wording of the above statements of ethics and professional conduct. I believe the protocol is that the prohibition is not just about asking about the condition and treatment but about anything relating to the relationship between that position and that patient".

[45] The court rejected the defence view that a distinction could be drawn between the duty of a doctor consulting for the defence and that of a doctor still treating a patient. The duty of

confidentiality arises immediately upon the creation of the doctor patient relationship and is not a duty qualified by the length of an active relationship.

[46] The orders sought by the plaintiffs in *Burgess*, (*supra*) included an order that the doctor in question not be permitted to testify at trial. The court found, however, that if the doctor had relevant evidence to provide, that evidence should be available to the court, in order that justice be accomplished in the case. The evidence that the court permitted to be given by the doctor was, however, limited to the diagnosis and prognosis made at the time of his original consultation with the patient and not opinions reached later and informed by materials that were not available to him before the time when he was retained by and reported to the defendants upon matters at issue at the time of trial.

[47] In my view it is clear that Karen Rucas acted at all material times within the scope of practice of occupational therapy when she assessed, treated and/or supervised others in the care and treatment of Ju Song.

[48] The 22 November 2004 report of Ms. Rucas (page 1) confirms that she personally attended upon Ju Song in Korea between 13 to 19 November, 2004 and that she undertook the services and analyses as described above. In addition, by taking and acting upon a written consent during her visit with Ju Song on 26 March 2005, as indicated in her 27 June 2005 report, and on a continuing basis thereafter, Ms. Rucas undertook professional conduct responsibilities to Ju Song.

[49] There is no issue that Ms. Rucas could and did properly report matters to Allianz relevant to the accident benefits claim. There is equally no issue that Ms. Rucas neither sought nor obtained a consent from Ju Song or her authorized representative, Mr. McLeish, to allow her to provide information and/or professional opinions relating to Ju Song to the defendants in this action and, more specifically, Ms. Rucas had no consent to enable her to reply to the invitation she received from Mr. Percival in his letter of 21 December 2007 to prepare a report, her report of 23 February 2008.

[50] Now, it may be that Ms. Rucas did not appreciate what the purpose and effect of providing a report to Mr. Percival would be. I note that Mr. Percival's invitation letter to Ms. Rucas refers to the matter at issue as: "Re: Allianz at Song".

[51] In addition, Mr. Percival stated the position by saying: "You will recall being involved in *this matter on behalf of Allianz sometime ago* relating to the injured plaintiff Ju Kyung Song" (emphasis added).

[52] Mr. Percival added: "*Allianz has been trying to resolve settlement of the plaintiff Song but has been unsuccessful*" (emphasis added).

[53] Mr. Percival predicted that the trial of this action would proceed on 18 February 2008 and he sought the expert opinions of Ms. Rucas in connection with *inter alia* "formulating a rebuttal report at this time for the purposes of you *giving evidence on our behalf* at the trial of this action in February" (emphasis added)

[54] Ms. Rucas is apparently still out of the country. The court is told that Mr. Percival has had no communications with her other than as contained in the correspondence tendered upon this application.

[55] One might well imagine, therefore, that Ms. Rucas may have formed the impression that the trial involved accident benefits claims and issues particular to Ju Song and her insurer, Allianz.

[56] Certainly, it appears that Ms. Rucas was not advised that the accident benefits issues had been settled, that Mr. Percival is solicitor of record for the remaining defendants, Hong and Enterprise, that while he had represented Allianz in this action, the claims made against Allianz as described in the Statement of Claim were for Uninsured and Underinsured Benefits, claims that would trigger a wholly different section of the Allianz policy than claims for accident benefits would, nor was she advised that, in any event, Allianz had been dismissed from this action and she was not told that any efforts that Allianz may have made to resolve issues that would be determined at trial were efforts made on behalf of the named defendants and in connection with claims that could not possibly trigger the accident benefits coverage portion of the Allianz policy.

[57] In any event, I see no distinction to be drawn between the professional responsibility owed by a doctor to his patient and the professional responsibility owed by an occupational therapist to her client as regards confidentiality. While occupational therapists may not chart the origin of their profession back to Hippocrates, they are recognized health care professionals and they are governed by regulations demarcating professional conduct in general and the confidentiality of client information in particular. In addition, Ms. Rucas holds herself out as a qualified and experienced specialist active in the area of personal injury assessments and reports for over 15 years; she must be taken to know and to wish to govern herself by her profession's confidentiality requirements.

[58] I am troubled by the fact that the trial of this action has been interrupted by this application. If, as appears to be the case, the sum and substance of the 23 February 2008 report of Ms. Rucas is a critique of the detailed analysis of the need for care services specified by Barbara Baptiste in her report of 12 December 2005, more than two years ago, and whether those are necessary or reasonable, why did the defendants not seek out an expert and commission a report long ago? Even if the defendants had sought out Ms. Rucas in a timely fashion, the issues determined here could have been addressed, on motion if necessary, long before trial.

[59] If there is something unique or important about the particular expertise that Ms. Rucas brings to this case, such as particular knowledge about or experience with the availability and/or cost of services, housing, equipment, of attendant care or other aspects of relevance to the jury and if the defendants felt it necessary to have the evidence of Ms. Rucas available before trial, it was open to them to seek an order under rule 31.10 of the Rules of Civil Procedure, R.R.O. 1990, Reg.194. In my view, whether the court had made an order for the examination of Ms. Rucas as a non-party or not, the issues now before this court would have been identified and determined at less cost and without any inconvenience to the members of the jury.

[60] To the extent that Ms. Rucas purports to ground her opinions stated in the 23 February 2008 report upon information contained in Activities of Daily Living Charts that she refers to in this report, I note that those charts have not been made exhibits at trial and that upon the application for an order that Ju Song be allowed to use the charts as an aide memoir, the defendants opposed and the court ordered the charts not be put to Ju Song.

[61] The charts do not accurately and completely summarize Ju Song's evidence and may not be an appropriate foundation upon which to build toward opinions Ms. Rucas purports to offer, even if her opinions were otherwise admissible.

[62] It appears that the charts were available to Mr. Percival by the time of his 21 December 2007 letter to Ms. Rucas. The content of the Charts may have come from Ju Song's discovery evidence or from other sources available to the defendants even before December 2007. The question of why such information was not put to Ms. Rucas or another expert sooner remains unanswered.

[63] Finally, I simply do not understand the position taken by Mr. Percival. His submissions blur the distinction between Allianz as the accident benefits insurer and as the tort insurer. I have always understood that it is the practice, if not also a legal requirement, in the automobile insurance industry, that accident benefit and tort files be separated and independently handled whenever both aspects of coverage are at issue with any given claimant.

[64] There are good reasons for this distinction. To begin with, an accident benefits claimant is an insured person under the coverage bound by the insurer and, as such, the claimant is owed a duty of good faith in the handling of the claim. As well, the insurer comes into possession of personal, medical and other information during the claim handling process and it is obliged to keep that information private and confidential.

[65] On behalf of vehicle owners and drivers named as defendants in a tort case, such as this one, the insurer's contractual obligation is to provide defence and indemnity in accordance with the policy provisions. Those defendants do not owe a duty of good faith to the plaintiff; in fact those defendants may (and have here) set their position in litigation adverse to the claims made by the plaintiff. In the context of the tort claim, there is no direct, contractual or other dealing between the plaintiff and the insurer. A conflict of interest situation could well arise for an insurer that allows information from an accident benefits file to bleed through to a tort file, and visa versa.

[66] Upon the information before the court on this application, it is clear that Mr. Percival has not been solicitor of record for Allianz in this action qua accident benefits coverage. It is unfortunate that his invitation to Ms. Rucas may be read to suggest otherwise.

Disposition

[67] I will not allow Ms. Rucas to offer opinion evidence except upon matters addressed in her reports dated on or before 3 April 2006. It appears clear to me that the purpose of the 23 February 2008 report delivered over the signature of Karen Rucas is to provide the court with a

view different from the expert opinions to be given by Barbara Baptiste and in support of a defence position adverse to the position to be asserted to the jury on behalf of Ju Song.

[68] In my view, Ms. Rucas should not communicate with defence counsel in this matter and particularly not at a time after the accident benefits issues between Ju Song and Allianz had been settled. Although Mr. Percival at one time represented Allianz when it was a defendant in this case, that time has passed; Allianz is no longer a party defendant.

[69] Allianz may, following and because of the determination of the issues between the remaining parties, be exposed under its contract of insurance to claims other than accident benefits claims but that does not afford Allianz, Hong or Enterprise Rent-A-Car a basis upon which to obtain an expert opinion for trial purposes on matters that Ms. Rucas was not originally retained by Allianz upon and that she was never retained by Ju Song to address.

[70] Whether or to what extent Ms. Rucas may have used confidential information to reach the opinions contained within her 23 February 2008 report, opinions adverse to her client's position, I do not know but a clear and present danger of that occurring arises if ever an occupational therapist, retained for accident benefits purposes, is allowed to offer opinions at the trial of a tort action that are adverse to the plaintiff's case. The court requires experts to be objective and in all respects professional.

[71] In the circumstances, this court orders that Ms. Rucas will not give opinion evidence upon matters outlined within her 23 February 2008 report.

[72] Costs of this application and of the day thrown away in order to hear and determine this application are to be addressed, if the parties cannot resolve them otherwise, at the conclusion of the trial.

Moore J.

DATE: 27 February 2008